

United States District Court
Eastern District of New York

X-----X Civil Action No. 1:16-cv-03852
EZ PAWN CORP. and ALOAMAKA
ONWUAKOR

Plaintiffs,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and NYPD
OFFICER JONATHAN BULZOMI

Defendants.

X-----X

Plaintiffs EZ PAWN CORP. and ALOAMAKA ONWUAKOR, by and through their attorney, PAUL J. SOLDA, ESQ., an attorney duly admitted to practice in the State of New York and before the E.D.N.Y. - alleges as follows:

1. This is an action by United States citizens and a domestic business corporation - brought to remedy deprivation of their civil rights and equal protection by person(s) acting under color of state law in violation of 42 U.S.C. Section 1983 et. seq. - seeking compensatory and punitive damages, and other appropriate legal and equitable relief.

JURISDICTION

2. Jurisdiction of the Court is proper pursuant to 28 U.S.C. §§1331, 1343 and 42 U.S.C. §1983 et. seq. In accordance with 28 USC §1367, supplemental and pendent jurisdiction also exist as there are related and intertwined state claims at issue which form a part of the same controversy.

3. The action arises with questions under the Constitution of the United States, and challenge pursuant to 42 U.S.C. §1983. Jurisdiction is accordingly founded on the existence

of a federal question.

4. As the unlawful practices complained of herein occurred within the jurisdictional boundaries of Eastern District of New York, venue is accordingly proper.

5. Pursuant to N.Y.S. General Municipal Law §50(e), a Notice of Claim was served upon the appropriate parties for the City of New York on October 6, 2015 and the Office of the Comptroller assigned claim number 2015PI029199 thereto.

PARTIES

6. EZ PAWN CORP. (“EZ”), is a New York corporation with principal offices located at 42-57 27th St., Long Island City, N.Y.

7. Plaintiff ALOAMAKA ONWUAKOR is a New York resident and a citizen of the United States, residing at 303 E. 54th St., Apt. 2, Brooklyn, NY.

8. Upon information and belief, and at all times hereinafter mentioned, Defendant CITY OF NEW YORK (“NYC”) was and still is a government and municipal entity existing within the boundaries of the five boroughs of the City of New York, State of New York.

9. Upon information and belief, and at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT (“NYPD”) is a law enforcement entity promulgated and existing pursuant to New York City Charter - having its principal place of business in the City of New York, State of New York.

10. Upon information and belief, and at all times hereinafter mentioned, Defendant NYPD OFFICER JONATHAN BULZOMI is a duly employed police officer of the NYPD.

FACTS OF THE CASE

11. EZ is a licensed collateral loan broker (pawnbroker) and second hand dealer, being duly licensed by the N.Y.C. Department of Consumer Affairs.

12. EZ has operated in NYC since 1997 and currently maintains thirteen separate retail store locations within the jurisdictional boundaries of the City of New York.

13. In or about 2009 and per encouragement by the NYPD, EZ initiated voluntary online reporting of its daily transactions with Leads Online (“Leads”).

14. Leads is now a challenged internet reporting system, misused by certain law enforcement agencies especially where it involves collateral loan brokers and secondhand dealers. Transactions undertaken by a particular business are uploaded onto Lead’s national database - which can then be viewed by participating law enforcement agencies. Some agencies, in turn, misuse the information and conduct warrantless criminal investigations to which the pawnbroker industry claims violates privacy and constitutional rights.

15. Upon information and belief, obtaining such nonpublic personal information has seduced the NYPD to implementing certain computer programs and practices which can in turn “data mine” and selectively profile customers of the subject pawnbroker.

16. Accordingly, EZ learned soon after participating with Leads - that their customers’ privacy rights were, in fact, being sacrificed by the NYPD’s misuse of EZ’s customer names and other related information.

17. Simply by data mining EZ’s transactional information in concert with their parolee/recidivist lists - the NYPD would initiate criminal investigations upon presumptions that “identified customers” may be involved in new crime activity.

18. Thereafter, the NYPD would follow up their data mining by undertaking warrantless investigations, searches and in particular by ordering “holds” on selected collateral.

19. Such actions constitute seizures under the Fourth Amendment of the United States Constitution as well as to related provisions of the New York State Constitution.

20. Participation in New York City is accordingly “strongly desired” by the NYPD - and where a pawnbroker declines Leads (and chooses conventional record-keeping), the NYPD has retaliated by exerting the undue force of law.

21. In or about 2012, EZ canceled its Leads program and by a measure of retaliation - faced immediate police harassment.

22. It was well known throughout the industry that the NYPD was in fact, acting under a policy to coerce all pawnbrokers into utilizing the (voluntary) Leads service and that very policy was then turned against EZ.

23. That after exerting the force of law, EZ relented to the NYPD and re-joined (later in 2012) the “voluntary” Leads service.

24. That in 2013, NYC and the NYPD sought to promulgate legislation in order to mandate such real- time electronic record filing by pawnbrokers and secondhand dealers and on December 30, 2013, NYC Local Law No. 149 was executed¹.

25. Significantly, in October, 2013, EZ submitted an affidavit in support of Gem Financial Services, Inc. - one of its fellow tradesmen in New York City. Gem Financial Services, Inc. had

¹ Local Law 149, in part, amended NYC Administrative Code §§20 - 267, 273 and 277). Said statute (then designed to go into effect on April 30, 2014) - required all pawnbrokers and secondhand dealers to utilize real-time electronic data reporting (i.e. Leads Online).

previously commenced a lawsuit against New York City arising out of similar police harassment that had included illegal searches/seizures and the coercive actions to force Gem into using Leads. (See: Gem Financial Services v. City of New York, US District Court, EDNY, Case No. 13-cv-1686).

26. That in a state court case involving the collateral loan brokers state trade association of New York - CLANY, an order was issued enjoining New York City from implementing the 2013 Leads statute. Said order reasoned that the administrative inspection scheme then presently undertaken by New York City was ostensibly unconstitutional (See: CLANY vs. City of New York, Et. Al., Supreme Court, Bronx County, Index No.: 303901/2014; order for injunction dated June 3, 2015 (see 2015 NY Slip Op. 50847(U))²

27. Shortly after EZ's involvement with the Gem Financial case, EZ noted increased police activity at its various retail store locations located throughout New York City.

28. With the Leads transactional information at their disposal, the NYPD ordered numerous criminal "holds" on various collateral security held by EZ and on occasion seized such collateral - made under threats of heavy-handed police activity.

29. Said police activity was undertaken, upon information and belief, in retaliation to EZ's support of Gem Financial Services and their lawsuit.

30. On each and every instance so alleged, defendants did not obtain any warrants nor execute their seizures pursuant to any warrants.

² Said June, 2015 Order (CLANY vs. City of New York, Et. Al.) has been *stayed* pending appeal before the Appellate Division of N.Y., First Department. Per stipulation, there has been no implementation of said "Leads" statute (Local Law 149).

31. That in or about June, 2015, EZ decided (for a second and final time), to cancel their voluntary Leads. At that point, they notably complied with the conventional statutory obligations to maintain comprehensive paper records of all their pawnbroker/secondhand dealer³ transactions.

32. It is noteworthy to acknowledge that New York City pawnbrokers operate under rules and guidelines emanating from both state and local city law⁴. In short, these businesses must maintain detailed records of their transactions and make same available for lawful inspections by law enforcement.

33. These statutes, however, cannot be utilized to permit law enforcement to freely undertake warrant-less searches and seizures - nor can they use the inspection right pre-textually to justify visits which in reality are undertaken for illegitimate purposes.

34. That law enforcement are, in fact, only permitted to conduct administrative inspections (of a regulated businesses records) - that are a part of a defined systematic regulatory scheme and are of a properly defined scope - as that limited right was set forth in a certain New York Court of Appeals ruling entitled People vs. Scott/People vs. Keta, Et. Al. (79 N.Y. 2d 474, 1992). See also: CLANY vs. City of New York, Et. Al., Order dated June 3, 2015 (see 2015 NY Slip Op. 50847(U)).

35. That all actions undertaken by the NYPD concerning EZ and the majority of their fellow tradesmen - have no systematic regulatory scheme nor any properly defined scope.

36. Accordingly, the current rule of law does not permit law enforcement to compel pawnbrokers to utilize any internet reporting system in order to publish their transactional records.

37. Without surprise, following EZ's cancellation of the challenged Leads service, the NYPD immediately responded by visiting various EZ locations and demanding their return to Leads. During

³ For economy, "secondhand dealers" will not be mentioned forthwith as they are deemed in like kind to pawnbrokers.

⁴ See eg.: NYS General Business Law, Article 5, NYC Administrative Code, §20, NYC Charter, Ch.18.

these visits, the NYPD issued warnings and threatened to take further action if EZ did not reverse their course.

38. By example, on July 8, 2015, NYPD officers visited the EZ retail store located at 2641 Atlantic Avenue, Brooklyn, New York (hereinafter “the Atlantic store”) - and sought to search the entire premises despite having no warrant.

39. EZ refused to give permission for such a warrantless search, despite the NYPD claiming they simply wanted to undertake an “administrative inspection”.

40. The NYPD officers notably did not seek their limited right to review any books or records of EZ.

41. That the NYPD officers demanded EZ return to Leads and threatened that they would return and take whatever action they chose without care of a disruption of the business.

42. That on July 10, 2015, at approximately 12:30 P.M., police officers again returned to the Atlantic store and again threatened action because of EZ’s refusal to use Leads.

43. That they again sought to search the entire premises under the guise of an administrative inspection - despite having no warrant.

44. That EZ once again offered their records for review, but the NYPD declined.

45. That during the course of this intrusion, plaintiffs advised the NYPD that their rights were being violated and claimed that their business practices were otherwise in full compliance with all applicable state and city regulations.

46. Thereafter, the NYPD chose to arrest EZ’s assistant manager - plaintiff ALOAMAKA ONWUAKOR (“AL”) without any justification or probable cause.

47. That said arrest was solely driven by animus and done in retaliation to EZ’s “defiance”.

48. That the NYPD effectively closed the operations of the EZ Atlantic store for the majority of the remaining day.

49. AL was taken to the local police station and incarcerated, where he was charged with violating New York State General Business Law, (“GBL”) §43 (“Certain Entries to be Made in

Book”)/ and §46 (“Rate of Interest”).

50. That there was no credibility nor merit whatsoever to any charges under the GBL.

51. That subsequent thereto, a criminal action was commenced which resulted in a dismissal on the merits on November 19, 2015.

52. That on several other occasions, between the Fall of 2014 and through 2015 - the NYPD consistently sought to bully EZ in part by maintaining a presence at various EZ stores and by disruptively “investigating” random transactions.

53. During said visits, the NYPD rarely performed any authentic inspection of the books and records of EZ.

54. That the NYPD “hold(s)” that were placed on various collateral - have disrupted EZ’s right to foreclose on same in the ordinary course of business and said “holds” were ordered without just cause and without due process of law.

55. That on several other occasions, the NYPD demanded to confiscate collateral jewelry - by either actually taking items or requiring “holds” be placed thereon - despite having no warrant or legal right otherwise.

AS AND FOR A FIRST CAUSE OF ACTION
(violation of rights pursuant to Fourth Amendment)

56. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "55" inclusive, with the same force and effect as if more fully set forth at length herein and state that during the time period discussed, defendants continuously threatened and exerted the force of law upon plaintiffs - wherever their stores lay situated.

57. That these visits were not justified as administrative inspections and were not in furtherance of any regulatory scheme with a properly defined scope - but were simply illegal Fourth Amendment intrusions.

58. That during many of these intrusions, defendants attempted to coerce EZ into utilizing Leads.

59. That defendants, in concert with their unlawful policies, ordered that EZ place on “police holds” - various jewelry lawfully in their possession and that such demands effectively served as a confiscation and an illegal seizure under law.

60. Such demands were made without any warrants or other judicial process and accordingly were seizures of property in violation of the Fourth Amendment to the U.S. Constitution.

61. That as a consequence, EZ was forced to set aside jewelry (ordered to be placed on such “holds”) - for as long as up to one year’s time - when they could have otherwise swiftly foreclosed, auctioned or liquidated same in its ordinary course - pursuant to state and city law.

62. That Defendants illegal actions also included the aforementioned issuance of criminal summonses upon plaintiff AL and such summonses had no merit nor probable cause and were accordingly dismissed at the state criminal court.

63. During many of these intrusions, the demands that plaintiff utilize Leads in exchange for them discontinuing their disruptive actions is per se unconstitutional - as law enforcement cannot unduly exert the force of law.

64. That during these intrusions, EZ advised that their rights were being violated and submitted that their business was otherwise in full compliance with all applicable state and city regulations.

65. That the intrusions were not justified administrative inspections, but rather unlawful confrontations by law enforcement - having no arguable probable cause and having no intended effect other than to serve the NYPD’s illegitimate policies while disrupting the operations of EZ.

66. That in all said intrusions, there was never any constitutionally adequate substitute for warrants and there was nothing credible defendants could claim to justify that such visits furthered any regulatory scheme.

67. Accordingly, the actions of the defendants acting under color of state law, constitute a continuous deprivation of plaintiff’s rights and are a violation of the Fourth Amendment to the U.S. Constitution as well as violative of related provisions within the New York

State Constitution.

68. That the defendants, by their actions, have accordingly violated the civil rights of EZ and their employees, including plaintiff AL.

69. That defendants conduct has caused financial harm to plaintiffs and is likely to continue to cause financial harm to the plaintiffs.

70. That plaintiffs have, as a consequence, been deprived of their civil rights by the defendants acting under color of state law in violation of 42 USC § 1983.

71. That plaintiffs have accordingly been damaged in the minimal sum of \$10,000,000.00 and punitive damages should issue in addition thereto.

AS AND FOR A SECOND CAUSE OF ACTION
(violation of rights pursuant to Equal Protection)

72. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "71" inclusive, with the same force and effect as if more fully set forth at length herein and states that NYC and the NYPD have deliberately and selectively mistreated plaintiff in violation of their rights to equal protection.

73. That the defendants have effectively singled out EZ from other pawnbrokers voluntarily using Leads and have done so with malice and bad faith.

74. That the selective treatment was motivated by animus and meant to punish EZ in retaliation for their refusal to cede to the NYPD's illegitimate demands.

75. That in consideration of the foregoing, defendants clearly maintained a selective and deliberate intent to exact the undue force of law upon EZ.

76. That EZ was deliberately treated differently from other pawnbrokers similarly situated and there was no rational basis for the difference in treatment.

77. That defendants encouraged and permitted such unconstitutional policies and customs to be carried out and have thereby demonstrated a deliberate indifference to all

constitutional values in favor of plaintiffs.

78. Accordingly, defendants acted without neutrality and regularity by unduly enforcing their powers upon EZ.

79. That the actions of the defendants acting under color of state law, constitute an unconstitutional deprivation of plaintiff's rights and are a violation of the United States Constitution and its rule of law concerning *equal protection* due all citizens of the United States.

80. That as a consequence, defendants conduct has caused financial harm to plaintiffs and is likely to continue to cause financial harm to the plaintiffs.

81. Plaintiffs have, as a consequence, been deprived of their civil rights by the defendants in violation of 42 USC § 1983.

82. Plaintiffs have accordingly been damaged in the minimal sum of \$10,000,000.00 and punitive damages should issue in addition thereto.

AS AND FOR A THIRD CAUSE OF ACTION
(violation of municipal liability)

83. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "82" inclusive, with the same force and effect as if more fully set forth at length herein and state that plaintiff's constitutional rights have been violated by an illegal and underhanded municipal policy.

84. That by making demands that EZ use Leads in exchange for defendants ending their illegal actions is by itself an unconstitutional municipal policy - as police may not unduly exert the force of law upon any citizen of the United States.

85. That despite defendants claim that the law permits "inspections", they never actually carried out legitimate administrative inspections nor were their searches made within any defined scope.

86. To the contrary, defendants profiled customers of EZ and pursued leads of crimes - all while hiding beneath the cover of a constitutionally challenged statute.

87. The Defendants illegitimate policy targets pawnbrokers like EZ who choose not to use Leads and consequently subjects them to the NYPD's deliberate and purposeful illegal enforcement actions.

88. Accordingly, NYC and the NYPD have maintained and have carried out policies, customs and practices which are unconstitutional.

89. Plaintiffs have, as a consequence, been deprived of their civil rights by the Defendants acting under color of state law in violation of 42 USC § 1983.

90. Plaintiffs have accordingly been damaged in the minimal sum of \$10,000,000.00 and punitive damages should issue in addition thereto.

AS AND FOR A FOURTH CAUSE OF ACTION
(violation of civil rights to Plaintiff ALOAMAKA ONWUAKOR)

91. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "90" inclusive, with the same force and effect as if more fully set forth at length herein and states that the Defendant NYPD OFFICER JONATHAN BULZOMI ("BULZOMI") was a duly appointed officer of the NYPD.

92. At all times mentioned, said police officer was acting under color of law, to wit: statutes, ordinances, regulations, policies and customs of the State of New York and City of New York.

93. Plaintiff is at all times relevant herein, a citizen of the United States and a

resident of County of Kings, State of New York - and brings this action pursuant to 42 USC §1983 and 42 USC §1988.

94. On July 10, 2015, the defendants, utilizing armed police officers while undertaking an illicit municipal agenda - did search, seize, assault and commit battery without any probable cause upon plaintiff ALOAMAKA ONWUAKOR (“AL”).

95. Defendants did physically seize AL during the arrest process in an unlawful and excessive manner – without just cause. As a consequence, AL was falsely arrested, unlawfully imprisoned and maliciously prosecuted without defendants possessing probable cause to do so.

96. The actions of the defendants resulted in the plaintiff being deprived of the following rights under the US Constitution:

- a. Freedom from assault;
- b. Freedom from battery;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from use of excessive force;
- g. Freedom from unlawful imprisonment.

97. BULZOMI subjected plaintiff to such deprivations of liberty, and did so in a malicious or reckless disregard of plaintiff’s rights and/or with deliberate indifference to those rights conferred by the Fourth and Fourteenth Amendments to the U.S. Constitution - as well as the New York State Constitution, Article 1 §§11, 12.

98. The direct and proximate result of BULZOMI’s actions resulted in AL suffering severe and permanent injuries of a psychological nature. AL was also forced to endure emotional distress, humiliation and anxiety - all to his detriment.

99. In accordance with 42 USC Section 1988, AL has been damaged in the

minimum sum of \$10,000,000.00 and a reasonable award of attorneys fees should issue thereon.

AS AND FOR A FIFTH CAUSE OF ACTION
(unlawful arrest)

100. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "99" inclusive, with the same force and effect as if more fully set forth at length herein and states that during the course of the ensuing confrontation and police action, plaintiff AL was arrested without any justification or probable cause.

101. That it was the intention of BULZOMI to confine AL; that AL was conscious of the confinement and that he did not consent to the confinement as the confinement was not privileged.

102. That AL suffered from unlawful physical touch, embarrassment, ridicule, emotional distress and damage to his reputation - arising out of said illegal confinement and false imprisonment.

103. Acting under color of law and with motive and intent to exert duress, intimidate and cause fear, said defendants deprived plaintiff of his rights by virtue of such arrest and the injuries resulting were the direct and proximate result of defendants actions.

104. That the incarceration was egregious, unnecessary and retaliatory and deliberately staged to willfully strike harm with the plaintiff.

105. Such actions were reckless and demonstrated a callous indifference to the legally protected rights of others.

106. Accordingly, compensatory and punitive damages should issue in the minimal sum of \$5,000,000.00.

AS AND FOR A SIXTH CAUSE OF ACTION

(assault/battery)

107. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "106" inclusive, with the same force and effect as if more fully set forth at length herein and states that defendants during the course of making the subject arrest - unlawfully engaged in bodily contact with plaintiff AL.

108. That it was the intention of defendants to not just to confine AL under arrest but to place him in apprehension and fear of injury by defendants unlawful physical actions and contact.

109. That BULZOMI did strike fear into AL by his actions and that such results constituted an assault and battery on AL.

110. At no time did the plaintiff consent the actions by BULZOMI.

111. Such actions demonstrated a callous indifference to the legally protected rights of others.

112. Accordingly, compensatory and punitive damages should issue in the minimal sum of \$5,000,000.00.

AS AND FOR A SEVENTH CAUSE OF ACTION

(malicious prosecution)

113. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "112" inclusive, with the same force and effect as if more fully set forth at length herein and states that defendants played an active role in commencing and staging the underlying prosecution against the plaintiff AL, in part, by issuing such misdemeanors despite having any merit whatsoever.

114. That with complete disregard to the law and evidence before them, the NYPD

issued criminal summonses and undertook the arrest and incarceration of AL.

115. That even if legitimate, such contemplated business violations ordinarily never require incarceration - but merely issuance of a “desk appearance” summons.

116. That such arrest in turn mandated AL’s appearance before the criminal courts of New York.

117. That at the subsequent criminal proceeding, first scheduled to be heard on September 24, 2015 - the Kings County Criminal Court set a motion schedule as the People of the State of New York refused to cede to a voluntary dismissal of charges.

118. That plaintiff AL subsequently submitted motions seeking dismissal of said charges on or about October 30, 2015.

119. That the case was ultimately scheduled for November 19, 2015, before Hon. Laura Johnson of the Kings County Criminal Court.

120. That on November 19, 2015, the Court dismissed both misdemeanor complaints in accordance with said motion and the dismissal was on the merits.

121. That the prosecution for said misdemeanors was commenced with malice and without probable cause to believe that it could truly succeed.

122. That the prosecution did not, in fact, succeed and said prosecution ended in dismissal of all charges.

123. That the primary purpose of the arrest was other than that of bringing AL to justice and that by such frivolous prosecution, damage was caused to the plaintiff and his reputation suffered as a consequence.

124. That all said criminal defense undertakings, their intervention and the hiring of legal defense counsel - was unjustifiably forced upon AL and done so under a contrived

scheme by the NYPD which clearly was designed to harass, intimidate and punish plaintiffs in part for their refusal to use Leads.

125. Such actions were reckless and demonstrated a callous indifference to state and federally protected rights of others.

126. That the issued misdemeanors and subsequent prosecution was vexatious in accordance with New York State Civil Rights Law.

127. Accordingly, damages should issue in the minimal sum of \$5,000,000.00 and punitive damages should be awarded in addition.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(attorneys fees)

128. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "127" inclusive, with the same force and effect as if more fully set forth at length herein and states that 42 U.S.C. §1983 is a specified civil rights statute of the United States.

129. The Civil Rights Attorney's Fees Awards Act of 1976 provides that prevailing parties in actions brought pursuant to civil rights statutes shall be entitled to a full award of attorneys fees as part of the costs of litigation.

130. That the plaintiffs have already expended divers sums for legal expense in being compelled to defend said frivolous criminal actions as well as for the anticipated costs associated with bringing the within federal action.

131. Accordingly, plaintiffs have been subjected to such expenses for legal representation and will continue to do so - as a consequence of defendants' violations hereto and demands remuneration.

WHEREFORE, Plaintiffs demand judgment against the defendants' as follows:

1. Per First Cause of Action; a finding that plaintiff EZ PAWN CORP have been deprived of their civil rights by the defendants acting under color of state law in violation of 42 USC § 1983 and awarding compensatory damages in the minimal sum of \$10,000,000.00 and punitive damages plus costs of the action.

2. Per Second Cause of Action; a finding that plaintiff EZ PAWN CORP. have been deprived of their civil rights by the defendants acting under color of state law in violation of 42 USC § 1983 and awarding compensatory damages in the minimal sum of \$10,000,000.00 and punitive damages plus costs of the action.

3. Per Third Cause of Action; a finding that plaintiff EZ PAWN CORP have been deprived of their civil rights by the defendants acting under color of state law in violation of 42 USC § 1983 and awarding compensatory damages in the minimal sum of \$10,000,000.00 and punitive damages plus costs of the action.

4. Per Fourth Cause of Action; a finding that plaintiff ALOAMAKA ONWUAKOR has been deprived his civil rights by the defendants acting under color of state law in violation of 42 USC § 1983 and awarding compensatory damages in the minimal sum of \$10,000,000.00 and punitive damages plus costs of the action.

5. Per Fifth Cause of Action; a finding that plaintiff ALOAMAKA ONWUAKOR was unlawfully arrested and awarding compensatory damages in the minimal sum of \$5,000,000.00 and punitive damages plus costs of the action.

6. Per Sixth Cause of Action; a finding that plaintiff ALOAMAKA ONWUAKOR was subjected to assault/battery and awarding compensatory damages in the minimal sum of \$5,000,000.00 and punitive damages plus costs of the action.

7. Per Seventh Cause of Action; a finding that plaintiff ALOAMAKA ONWUAKOR was maliciously prosecuted and awarding compensatory damages in the minimal sum of \$5,000,000.00 and punitive damages plus costs of the action.

8. Per Eighth Cause of Action; an award directing payment of *attorney fees*.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: New York, New York

July 11, 2016


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VERIFICATION

Paul J. Solda, being duly admitted to practice in the Courts of the State of New York say that I am the attorney of record to the within party and that I am fully familiar with the facts and circumstances hereto. I have read the foregoing Complaint and have fully discussed same with the plaintiffs and accordingly know the contents to be true to my knowledge, except those matters stated upon information and belief and those relied upon by documents and memoranda within this file.

I make this Affirmation (Verification) instead of the Plaintiff because the resides in a different county from where your deponent maintains his practice of law.

I affirm the foregoing to be true subject to the penalties for perjury.

Dated: July 11, 2016

Paul J. Solda
Paul J. Solda, Esq.